

HOUSE BILL 2349

By Littleton

AN ACT to amend Tennessee Code Annotated, Title 37,
Chapter 5, Part 5, relative to licenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 5, is amended by adding the following as a new section:

(a) On or before July 1, 2027, the department shall establish an easily accessible, web-based, child care agency registry, through which members of the public may obtain the following information:

(1) A list of licensed or approved child care agencies, excluding private family boarding homes and foster homes, that differentiates between licensed and license-exempt providers and is searchable by zip code;

(2) The current status of a child care agency's license or approval;

(3) Information concerning violations by a licensed or approved child care agency, including:

(A) The identity of the child care agency;

(B) The date of the violation;

(C) The number of serious injuries and deaths that occurred as a result of the violation;

(D) Action taken by the department in response to the violation;

and

(E) Corrective action taken by the child care agency;

(4) Information concerning any adverse licensing action taken against a licensed or approved child care agency, including:

- (A) The identity of the child care agency;
 - (B) The date of the adverse licensing action; and
 - (C) The type of adverse licensing action;
- (5) Information concerning licensed or approved child care agency inspections, including:

- (A) The date of the most recent inspection; and
 - (B) The results of each inspection, including any requested corrective action; and
- (6) Other relevant information.

(b) The registry described in subsection (a) must not contain the address of a private family boarding home or foster home or information identifying an individual child or foster parent.

(c) The department shall publish online in a timely manner full monitoring and inspection reports, either in plain language or with a plain language summary, and shall establish a process for licensed and license-exempt child care agencies to take corrective action to cure violations, where applicable. The reports must include:

- (1) Health and safety violations, including fatalities and serious injuries occurring at the child care agency;
- (2) Information on corrective action requested by the department, where applicable; and
- (3) A minimum of three (3) years of results, where available.

(d) The department shall collect and disseminate the following information to the general public and providers through an easily accessible website:

- (1) Department processes, including:
 - (A) The process for licensing child care agencies;

(B) The process for conducting monitoring and inspections of child care agencies; and

(C) Processes for reporting, receiving, and reviewing complaints related to health and safety concerns, including licensing violations, at child care agencies;

(2) Policies and procedures related to criminal background checks for child care agencies;

(3) The offenses that prevent individuals or entities from serving as child care agencies;

(4) An annual list of facilities the department contracts with or otherwise utilizes to provide residential child care to children and youth in state custody that are not licensed or approved by the department, including information about which entity does license or approve those facilities, and information about how health and safety concerns can be reported about those facilities; and

(5) Directions on how the general public can contact the department and other programs to help them understand the information on the website.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.